

The answer of William Johnson to the bill of complaint of Luke Lavender filed & now pending in the Court of Common Pleas for the County of Delaware against this respondent.

The said William Johnson now comes and for answer to so much of said bill as it is material for him to answer unto answering says, that true it is the said Henry Perry was the authorized agent of the said Complainant at the time set forth in said bill. And further says that the said James Caton in the bill mentioned was, at the date of the order therein set forth, indebted to him (this respondent) on one hundred dollars or over which he was unable to pay. but at the same time he (Caton) informed this respondent that the said Henry Perry aforesaid as agent for the Complainant was under obligations to accept his Catons order for twenty thousand brick, and also that Thomas Williams in the bill and order mentioned would take twenty thousand brick and pay the money for them. This respondent therefore acting upon this information and wishing to secure at least a part of his claim, procured the said Caton to draw the order to the term and effect set out in the bill and this respondent and said Caton together went from the Town of Delaware towards the brick yard of said Complainant for the purpose of procuring the acceptance of said Henry Perry, agent as aforesaid, to said order. This respondent with said Caton met or overtook said Perry between said brick-yard & said Town & this respondent charges that said Perry came with him & said Caton to said Town and there in the office at that time belonging to Messrs Howard Sharp & Mr Cullough in the presence of said Caton & this respondent accepted the same by writing thereon the words set out in the bill purporting to be an acceptance. This respondent then together with said Caton went to said Thomas Williams & endeavored to raise the money on the brick called for in said order. but the said Williams then declined paying cash for the brick, wishing to pay for them in cabinet ware. This proposition was not agreeable to this respondent & the said Caton desired this respondent to take said order so accepted as aforesaid in part payment of his (Caton's) indebtedness to this respondent, as aforesaid, which

Lavender S Johnson The answer of William Johnson to the bill of complaint of Luke Lavender filed & now pending in the Court of Common pleas 1 for the County of Delaware against this respondent The said William Johnson now comes and for answer to so much of said bill as it is material for him to answer unto answering says that true it is the said Henry Perry was the authorized agent of the said Complainant at the time set forth in said bill . And further says that the said Aaron Caton in the bill mentioned was , at the date of the order therein set forth , indebted to him this respondent) in one hundred dollars or over which he was unable to pay , but at the same time he (Caton) informed this respondent that the said Henry Terry aforesaid as agent for the Complainant was under obligations to accept his Catons order for twenty thousand hick , and also that Thomas Williams in the bill and order mentioned would take twenty thousand brick and pay the money for them . This respondent therefore acting upon this information and wishing to secure at least a part of his claim , procured the said Caton to draw the order to the tenor and effect set out in the bill and this respondent and said Catore together went from the Town of Delaware towards the brick yard of said Complainant for the purpose of precising the acceptance of said Henry Perry , agent as aforesaid , to said order . This respondent with said Caton not in overtook said Ferry between said hich yard said Town & this respondent charges that said Perry came with him & said Caton to said Town and there in the office at that time belonging to Messrs Howard Sharp & M Cullough in the presence of said Caton #→ this respondent accepted the same by writing thereon the words set out in the bill purporting to be an acceptance , this respondent then together with said Caton went to said Thomas Williams & endeavoured to raise the money of the birch called for in said order , but the said Williams their declined paying cash for the hick wishing to pay for them in cabinet ware . This proposition was not able to this dependent of the said Caton desired this pendent to take said order to accepted as aforesaid in part payment Cal stances to this respondent , as aforesaid , which 125 P

Citation:

"Delaware, Ohio, United States records," images, FamilySearch (<https://www.familysearch.org/ark:/61903/3:1:3Q9M-CSY2-XSQR-Q?view=fullText> : Sep 14, 2026), image 989 of 3201; Ohio. Court of Common Pleas (Delaware County). Image Group Number: 008368744

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